

House File 2691 - Introduced

HOUSE FILE 2691
BY COMMITTEE ON ECONOMIC
GROWTH AND TECHNOLOGY

(SUCCESSOR TO HSB 635)

A BILL FOR

1 An Act relating to the ownership of artificial intelligence
2 output and trained artificial intelligence.
3 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. NEW SECTION. 554J.1 Definitions.

2 For purposes of this chapter:

3 1. "*Artificial intelligence*" means a machine-based system
4 that, for any explicit or implicit objective, infers from the
5 input the system receives to generate output that can influence
6 physical or virtual environments.

7 2. "*Input*" means data, directives, or instructions that a
8 user provides to guide the creation of new output.

9 3. "*Output*" means new content that an artificial
10 intelligence generates based on a user's input in relation to
11 the data used to train the artificial intelligence. "*Output*"
12 includes but is not limited to audio-visual media, images,
13 predictions, recommendations, and text.

14 4. "*Train*" means to expose an artificial intelligence to
15 data for the purpose of making the artificial intelligence
16 recognize patterns, relationships, and structures between data
17 so the artificial intelligence can employ knowledge of those
18 patterns, relationships, and structures to create new output.

19 5. "*User*" means a person that uses artificial intelligence
20 for the purpose of generating output. "*User*" does not include
21 a person giving data to an artificial intelligence for the
22 purpose of training the artificial intelligence.

23 Sec. 2. NEW SECTION. 554J.2 Ownership of output —
24 ownership of trained artificial intelligence.

25 1. A user whose input causes an artificial intelligence to
26 generate output shall be the owner of the output provided that
27 the terms of use for the artificial intelligence or a contract
28 the user has with the owner of the artificial intelligence does
29 not contain a provision altering the ownership of generated
30 output. If the terms of use for the artificial intelligence
31 or a contract between the user and the owner of the artificial
32 intelligence contains a provision relating to ownership of
33 generated output, ownership of generated output shall be
34 determined by the terms of use or contract.

35 2. A person that trains an artificial intelligence shall

1 be the owner of artificial intelligence that results from the
2 training if all of the following apply:

3 a. The training data was lawfully acquired and used for
4 training purposes.

5 *b.* The person has not transferred ownership rights of the
6 resulting artificial intelligence to another person through a
7 contract or agreement.

EXPLANATION

9 The inclusion of this explanation does not constitute agreement with
10 the explanation's substance by the members of the general assembly.

11 This bill relates to the ownership of artificial
12 intelligence output and trained artificial intelligence (AI).

13 The bill defines "artificial intelligence", "input",
14 "output", "train", and "user".

15 The bill provides that a user whose input causes an AI to
16 generate output is the owner of the output provided that the
17 terms of use for the AI or a contract the user has with the
18 owner of the AI does not contain a provision altering the
19 ownership of generated output. If the AI's terms of use or a
20 contract between the owner of the AI and the user contains a
21 provision relating to ownership of generated output, then the
22 provision in the terms of service or contract shall apply.

23 The bill provides that a person who trains an AI is the
24 owner of AI that results from the training if the training data
25 was lawfully acquired and used for training purposes and the
26 person has not transferred ownership rights of the resulting AI
27 through a contract or agreement.